

HOUSE No. 950

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act governing the use of pesticides containing the herbicide substance Glyphosate in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>10/27/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>2/27/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>10/14/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>

HOUSE No. 950

By Representative Gentile of Sudbury, a petition (accompanied by bill, House, No. 950) of Carmine Lawrence Gentile and others relative to governing the use of pesticides containing the herbicide substance Glyphosate in the Commonwealth. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 813 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act governing the use of pesticides containing the herbicide substance Glyphosate in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 132B of the General Laws is hereby amended by inserting after
2 section 6K the following section:-

3 Section 6L. (a) No individual shall use a pesticide that contains the herbicide
4 substance Glyphosate, unless the individual is appropriately licensed or authorized by the
5 department pursuant to subsection (b).

6 The department's licensure or authorization of an individual to use a pesticide
7 containing said herbicide substance which has been registered as being for general use, shall be
8 required when the pesticide is to be used on any land, whether or not the land is owned or

controlled by the individual for any non-agricultural purpose or for the purpose of growing agricultural commodities.

(b) An individual who holds a valid certification, license or permit issued by the department as a certified applicator, commercial applicator, private applicator, licensed applicator or as an appropriate individual authorized by permit, may use a pesticide containing said herbicide substance, which is registered for a general use or restricted use, subject to compliance with all applicable provisions of this chapter and department regulations for the type of use such pesticide is classified.

If a pesticide that contains said herbicide substance is registered for a general use, an individual who holds a valid applicators license may use a pesticide containing said herbicide substance on any land without being under the direct supervision of another who is a certified applicator.

(c) Notwithstanding any provision of this chapter to the contrary, when a pesticide contains said herbicide substance which is registered for general use, the following conditions on the sale of such pesticide to the public shall apply:

No person shall offer for sale, sell, retail, supply or make available any pesticide that contains said herbicide substance, to an individual who does not hold the appropriate department issued certification, license or permit under the prior subsection.

No person shall offer for sale, sell, supply, retail or allow the public, including its customers, to access or purchase any pesticide containing said herbicide substance without first verifying that a customer holds a valid department issued certification, license or permit.

No person shall sell, retail or supply any pesticide containing said herbicide substance to a customer, unless the delivery of such pesticide occurs on the premises of its registered business establishment.

(d) A person desiring to register its the business establishment to sell, distribute, supply or provide to its customers any pesticide containing said herbicide substance shall make an application to the department. A person making an application for a registration or renewal of a registration, shall provide the information as required by the department, and pay the registration fee, not to exceed 25 dollars as established by regulation, for each business establishment to be registered.

Registrations or renewal of registrations, issued by the department shall be for a term not to exceed 1 year for each business establishment.

The department shall grant a registration, or renewal of a registration, pursuant to the terms, conditions and restrictions as provided under the regulations of the department, as it deems necessary and appropriate. A registration may be revoked at any time the department finds its terms, conditions and restrictions of the registration or applicable regulations are being violated.

(e) Nothing in this section shall preempt or limit the subcommittee of the pesticide board from registering any pesticide that contains said herbicide substance, or determining the classification of such pesticide as being for a general use or a restricted use.

50 If the subcommittee determines that a pesticide containing said herbicide
51 substance should be registered for a restricted use under section 7, then a person using such
52 pesticide, shall comply with all applicable provisions of this chapter and regulations for pesticide
53 classified for restricted use.

54 The subcommittee may also determine that a pesticide containing said herbicide
55 substance, which is classified for restricted use, also requires further limitations, which may
56 include that such pesticide: (i) is restricted to certain individuals or groups, (ii) requires the
57 department's written permission prior to each use; or (iii) requires further restriction in any other
58 manner.

59 (f) As used in this section, the words "Use a pesticide", shall include the spraying,
60 releasing, depositing or applying a pesticide containing said herbicide substance.

61 SECTION 2. The second paragraph of section 14 of said chapter 132B of the
62 General Laws, as appearing in the 2018 Official Edition is hereby amended by striking out, in
63 lines 9 and 10, the words, "inclusive, or section 7A" and inserting in place thereof the following
64 words:- inclusive, or section 6L, or section 7

65 SECTION 3. This act shall take effect 12 months after passage.